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RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 08/11/23, A.A.A. (the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity ABANCA SERVICIOS FINANCIEROS, E.F.C., S.A. (ASF), with CIF: A28197036 (the defendant), for the alleged violation of data protection regulations:

Regulation (EU) 2016/679 of the European Parliament and of the Council of 27/04/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018 of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

In his complaint, he states that his personal data is registered in common credit information systems at the request of the defendant due to a debt with which he does not agree, as he has never been requested to pay nor informed about the possibility of including his data in such files.

Along with the complaint, he attaches the response provided to him by ASNEF on 27/10/23 regarding the inclusion of his personal data at the request of the entity ASF, where they inform him that after forwarding his request for data deletion to the entity ASF, it has confirmed the existence of the debt and therefore the permanence of the personal data in the file.

SECOND: On 11/12/23, in accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on 11/12/23, as recorded in the acknowledgment in the file.

THIRD: On 11/01/24, the defendant submitted a response, emphasizing the following points:

- That on 03/11/21, the complainant signed a credit card contract (Credipago ***REFERENCE.1) with ASF, through which a credit line of a total amount of 5,409.95 euros was granted. A copy of the aforementioned contract is attached.
- That the aforementioned contract expressly informed about the possibility of communicating personal data to solvency files if the same was breached: point vii) of section 5 of Clause 16 "Basic Information on Data Protection".
- That the first three receipts issued for collection were unpaid by the complainant (December 2021 and January and February 2022), so ASF assigned the collection of the payment to the company ISGF Informes Comerciales, S.L. (ISGF).
- That on 14/01/22, ISGF sent the complainant communication ***REFERENCE.2 informing him of the debt and the possibility that the data regarding it could be communicated to solvency files. The unpaid receipts were recovered; however, the remaining receipts issued for collection since 01/03/22 remained unpaid.
- That on 04/05/22, ISGF sent the complainant communication ***REFERENCE.3 informing him of the debt, and again of the possibility that ASF could communicate the data regarding it to the solvency file.
- That 60 days after the date of the first unpaid receipt that was not recovered and prior communication to the interested party, ASF notified the credit information file ASNEF-EQUIFAX of the data related to the debt, with the date of registration in the file being 05/09/22.
- The complainant submitted a complaint to ASNEF EQUIFAX on 18/10/23, in which he requested the deletion of his data from that file, receiving a response from this entity on 27/10/23 in which his request for deletion of his data was denied after ASF confirmed both the existence of the debt and the permanence of the data in the file.
- That on 12/12/23, after receiving the information request from this Agency, ASF proceeded to initiate

the precautionary deletion of the complainant's data in the credit information file.

The response includes copies of the following documents:

- Copy of the document: "CREDIT CARD APPLICATION - CREDIPAGO APPLICATION" dated 03/11/21, with a requested amount of 3,790 euros, and whose holder is A.A.A. D.N.I.: ***NIF.1, residing at ***ADDRESS.1, and where, among other matters, the following clauses are included: (...) 16. BASIC INFORMATION ON PERSONAL DATA PROTECTION: (...) 5. To whom can we communicate your personal data? The processing, in order to comply with the purposes previously detailed based on the legitimizing basis specified for each purpose, may involve that your personal data be communicated to third parties, such as: i) Public bodies and administrations. ii) Notaries or public certifiers. iii) Valuation or appraisal companies. iv) Public Registers. v)

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Insurance Companies, vi) Companies of the economic Group of ABANCA. vii) Common Credit Information and Asset Solvency Systems. viii) Common fraud prevention files (such as, e.g., the "CONFIRMA" file), ix) the Central Risk Information of the Bank of Spain —CIRBE— (the ENTITY is obliged to report to the CIRBE, in the terms provided by current legislation, the declaration of the data regarding the credit risks that the Client incurs with the ENTITY, and, in the case that the Client is an individual entrepreneur and has incurred the ownership of the mentioned risks in the exercise of their business activity, the ENTITY must indicate this condition in the referred declaration); and x) The collaborating merchants or establishments of the ENTITY, in the event that the financing requests made by the Client to the ENTITY are processed through the intermediation of such merchants or establishments. In relation to the common fraud prevention files, the Client may consult the information regarding the participating entities in the same, the retention period of their data in such files, and the way to exercise their rights before them in the additional and detailed information about Data Protection that appears in the privacy policy accessible on our website (<http://www.abancaserfin.com>), within the section called "This Web," located at the bottom of said website.

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Copy of the communication sent by the entity Informes Comerciales, S.L. (ISGF) to the claimant, dated 14/01/22, where they state, among other issues, the following:

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"Our client ABANCA SERVICIOS FINANCIEROS E.F.C. S.A has commissioned us to manage the collection regarding the credit operation that you hold against you and which amounts to 117.29 euros plus expenses and late interest. In order to manage your collection or, if applicable, to proceed judicially (...).

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Furthermore, in compliance with current regulations and within the established deadlines, we inform you that ABANCA Servicios Financieros will communicate your debt to asset solvency files, with the consequent problems that this could cause you when applying for credit from any financial entity. We also inform you of the blocking of your contract, which will be maintained as long as the objective reasons that motivated it persist (...).

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Copy of the communication sent by the entity ISGF to the claimant on 04/05/22, where they state, among other issues, the following:

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"Our client ABANCA SERVICIOS FINANCIEROS E.F.C. S.A has commissioned us to manage the collection regarding the credit operation that you hold against you and which amounts to 129.89 euros plus expenses and late interest. In order to manage your collection or, if applicable, to proceed judicially (...).

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Furthermore, in compliance with current regulations and within the established deadlines, we inform you that ABANCA Servicios Financieros will communicate your debt to asset solvency files, with the consequent problems that this could cause you when applying for credit from any financial entity. We also inform you of the blocking of your contract, which will be maintained as long as the objective reasons that motivated it persist (...).

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Screenshot of the computer systems where the following information appears: Entity: ABANCA SERVICIOS FIN; Operation Code: ***REFERENCE.4; Amount of the debt: 3880.49; Entity Code: 0086; Country Code: 724.

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Copy of the response sent to the claimant on 11/01/24, via Burofax, where it can be read, among other issues, the following:

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"We are contacting you regarding the transfer, by the Spanish Agency for Data Protection, of the complaint you filed with the aforementioned agency on November 8, 2023. In said complaint, you stated that ABANCA SERVICIOS FINANCIEROS, E.F.C., S.A. (hereinafter, "ASF" or the "Entity") included your data in the ASNEF credit information system without informing you beforehand of the possibility of such inclusion.

For these purposes, we have verified that on November 3, 2021, you signed a Credipago Contract No. ***REFERENCE.1 with ASF through which you were granted a credit line for the financing of a kitchen set purchased at the IDH INVES establishment, for a total amount to be paid of five thousand four hundred nine euros with ninety-five cents (5,409.95 €) to be paid in sixty (60) monthly installments, at a rate of ninety-six euros per month (90.16 €) each.

In the aforementioned Credipago contract, you are expressly informed about the possibility of communicating your personal data to solvency files. Thus, in point vii) of section 5 ("To whom can we communicate your personal data?") of Clause 16 ("Basic Information on Personal Data Protection Policy") of the aforementioned document, the following is expressly stated (...).

FOURTH: On 08/02/24, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On 24/04/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity ASF, with CIF: A28197036, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the RGPD, classified in Article 83.5.a), as the existence of processing of the personal data of the claimant is evident.

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by the respondent when it notifies the same to the credit information file ASNEF- EQUIFAX, without proving the traceability of the payment request prior to the inclusion of the same in the solvency file. In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at the time of the opening of the file, would amount to a total of 100,000 euros (one hundred thousand euros).

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the respondent submitted a written statement of allegations on 10/05/24, in which it stated the following:

"FIRST. Background: Prior to the analysis of the legal arguments on which this Agency bases its decision to initiate sanctioning proceedings against ASF for an alleged infringement of data protection

regulations, we must affirm that all legally and doctrinally required conditions have been observed to consider the treatment consisting of the inclusion of A.A.A.'s data in the ASNEF solvency file on May 6, 2022, as lawful.

In this regard, it is anticipated that the interested party was informed about the possibility of including their data in credit information systems and a prior payment request was sent, as evidenced by the documentation we are providing on this occasion, and of which we request its acceptance as evidence.

It is evident that there has been a communication defect in the initial response conveyed by ASF to this Agency regarding the information request received on December 11, 2023. Therefore, now apologizing for this defect, we proceed to rectify it in this proceeding by fully accounting for the actions that were effectively observed by ASF in its relationship with the claimant, which will undoubtedly allow this Agency to verify the regularity of said actions.

SECOND. Evidence of the sending of prior payment requests prior to the registration of the debt in the ASNEF solvency file.

As detailed in the facts outlined by this Agency in the Initiation Agreement, on November 3, 2021, A.A.A. signed the Credipago Contract ***REFERENCE.1 with ASF, through which a credit line was granted for the financing of a kitchen set at the IDH INVES establishment for a total amount to be paid of five thousand four hundred nine euros with ninety-five cents (€5,409.95), to be paid in sixty (60) monthly installments, at the rate of ninety-six euros and sixteen cents (€90.16) each.

In such Contract, A.A.A. was informed of the possibility of communicating their personal data to solvency files.

The first three receipts issued for collection were unpaid by A.A.A., receipts corresponding to the months of December 2021 and January and February 2022, for which ASF assigned the payment claim to two.

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debt collection companies: ISGF Informes Comerciales, S.L. (referred to in the initial response to the information request) and, additionally, Esco Expansión, S.L. Both entities informed A.A.A. about the debt and the possibility that ASF would communicate their data to solvency files, according to the following details:

1. On January 14, 2022, ISGF Informes Comerciales, S.L. sent a communication to A.A.A. (**REFERENCIA.2) informing them of the debt and, likewise, of the possibility of communicating it to solvency files. Attached as Annex I are: (i) the communication sent by ISGF Informes Comerciales, S.L. to A.A.A.; (ii) the certificate issued by EQUIFAX IBERICA, S.L. ("Equifax"), stating that the letter with ref. ***REFERENCIA.2 addressed to A.A.A. was generated in Equifax on January 14, 2022, processed on the same date by the service provider ARTEOS DIGITAL, S.L., and made available for postal delivery, and, furthermore, that there is no record of it being returned; and (iii) delivery receipt from Correos.

2. Prior to this, on December 9, 2021, a communication was sent by Esco Expansión, S.L. (ID ***ID.1 and Reference ***REFERENCIA.5) informing the claimant about the existence of the debt and, likewise, of the possibility that ASF would communicate the data to solvency files (for these purposes, we refer to the evidence that we will mention later, which is provided as Annex III).

The first three unpaid receipts by A.A.A. were recovered; however, the remaining receipts issued for collection since March 1, 2022, onwards remained unpaid, which is why ASF reassigned the payment claim to the aforementioned debt collection companies. In this regard:

- On May 4, 2022, ISGF Informes Comerciales, S.L. sent a communication to A.A.A. (**REFERENCIA.3), which we referenced in the initial response submitted to this Agency, informing them of the debt and, again, of the possibility that ASF would communicate the data to solvency files. For these purposes, attached as Annex II are: (i) the communication sent by ISGF Informes Comerciales, S.L. to A.A.A. on May 4, 2022; and (ii) the document issued by said debt collection

company certifying the sending of the aforementioned communication with reference ***REFERENCIA.3 addressed to A.A.A., as well as the non-return of the same.

- Additionally, previously, on April 8, 2022, a communication was also sent to A.A.A. by Esco Expansión, S.L. (communication with ID ***ID.2 and Reference ***REFERENCIA.5), informing them of the debt and the possibility of including the data in solvency files. For proper accreditation of the sending of the indicated communication, the following are attached as

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Annex III to this document: (i) the communications sent to A.A.A. by Esco Expansión, S.L. on December 9, 2021 (which we referred to in the previous point 2 of this document) and April 8, 2022 (this due to the non-payment of the remaining invoices issued for collection since March 1, 2022); (ii) the certificate issued by the document printing and generation company E Farré, S.L., certifying that the aforementioned letters with ID ***ID.1 and ***ID.2, respectively, and reference ***REFERENCIA.5 were sent to A.A.A., and, furthermore, that there is no record of them being returned; and (iii) the delivery receipt of the same at Correos. Sixty (60) days having passed since the date of the first unpaid invoice not recovered and, as evidenced, having made the prior payment request to the interested party, on May 6, 2022, ASF notified the credit information file ASNEF-EQUIFAX of the data related to the debt.

In the Initiation Agreement, it is stated that “the entity being claimed has not proven that it has made the prior payment request to the claimant nor is it even proven in an indicative manner, that is, by providing a certificate from the external company that was commissioned to generate, envelope, and make the letter available at the post office or courier company; proof from the post office or courier company of having received the letter; and a certificate from an external company of non-return of the same. Therefore, it is not proven that the claimant received the corresponding notice.”

For this reason, it is in the interest of this party to note that, with the extensive documentation attached to this document (see the aforementioned Annexes I, II, and III), ASF has duly proven the sending of the prior payment request to A.A.A., as the following has been provided for this purpose: 1. Certificates from the external companies commissioned to make the letters available at Correos. 2. Delivery receipts of the letters at Correos. 3. Certificates from the external companies that certify the non-return of the communications.

Additionally, in the Judgment of the Supreme Court dated 09/27/2023 (R. 8171/2022) referenced by this Agency in the Initiation Agreement, regarding the receptive nature of the prior payment request, the following is cited as an additional reasonable presumption to those already proven: “(i) the address to which the letters containing the request were sent [...] being that of the plaintiff's domicile as stated in the loan document.”

Well, the address to which the prior payment requests referred to in this document were sent is the same address reported by A.A.A. in the Credipago Contract ***REFERENCIA.1, through which the line of credit that gave rise to the debt subsequently communicated to the asset solvency file was granted. For these purposes, an excerpt from the Contract is attached as Annex IV (which was already provided in full in our response to the request from C/ Jorge Juan, 6).

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information) that evidences that the address reported in said Contract coincides with the address to which the requirements were sent. We add that, as was made clear in the response to the initial information request, due to the claim filed by A.A.A. with this Agency, ASF sent the claimant, to the same postal address, a burofax that is recorded as delivered. For these purposes, Annex V includes evidence of the burofax sent to the claimant's address, which is recorded as delivered on January 12, 2024.

THIRD.- Evidence of the removal of A.A.A.'s personal data from the ASNEF-EQUIFAX credit information file. In the Initiation Agreement, this Agency states that from the evidence provided "it does not appear that the data has been removed provisionally as claimed by the entity being reported." Furthermore, in the burofax sent to the claimant dated 01/11/2024, there is no information regarding the alleged provisional removal." Regarding this statement, it is necessary to clarify two points:

1. That in the response to the initial information request, a relevant part of the screenshot evidencing the removal of the data by ASF from the ASNEF-EQUIFAX credit information file was mistakenly cut off. Therefore, the complete screenshot is attached again as Annex VI, correcting the error; in this screenshot, it is observed that in the query made on December 13, 2023, by entering A.A.A.'s identifier (his ID number) into the ASNEF-EQUIFAX system, the following information is returned: "No data to display." Thus, it is duly evidenced that the provisional removal of the information related to the debt from the ASNEF file occurred as soon as ASF became aware of the claim filed with this Agency.

2. That the burofax sent by ASF to A.A.A. consisted of two pages and, also by mistake, the second page was cut off in the response to the initial information request. In this last page, the claimant was informed about the removal of the data initially registered in the credit information file: "Finally, we inform you that following the claim filed by you with the Spanish Agency for Data Protection, the Entity has proceeded with the provisional removal of your data from the ASNEF-EQUIFAX credit information system, until a resolution from said administrative authority is obtained." For these purposes, we refer to Annex V of this document, which includes the complete burofax, as well as evidence of its receipt.

FOURTH.- Conclusions: Consequently, from all the arguments and evidence presented above, it follows that there are no elements that allow us to affirm that there has been a processing of data contrary to the current regulations, as it has been evidenced that the payment requirement was sent prior to the inclusion of A.A.A.'s personal data in the ASNEF-EQUIFAX credit information system. Likewise, after ASF received the claim filed with the Agency on December 11, 2023, the claimant was informed, on January 11, 2024, of the provisional removal of his personal data from the credit information system, until a resolution from the Agency was obtained.

For all the above considerations, we present this written Allegation in a timely manner, along with the rest of the documentation accompanying it as Annexes, and before this Agency, we REQUEST: I. That this written Allegation be considered as presented in a timely manner. II. And that, in accordance with the Allegations presented and in view of the documentation provided, the proceedings initiated in the File be archived, as it has been evidenced that there has been no breach of data protection regulations.

Along with the written allegations, the following documentation is presented:

a).- Contract between both parties:

- Dated 03/11/21, copy of the ABANCA-Credipago Contract ***REFERENCE.1 (Credit Card), signed with the claimant, which includes his postal address: ***ADDRESS.1.

b).- First requirement and warning of possible inclusion in the credit file:

- Dated 09/12/21, copy of the communication sent by the entity ESCO EXPANSION SL to the claimant at the postal address appearing in the contract signed with the entity ASF, (ID ***ID.2 and reference number: ***REFERENCE.5,- delivery note no. 374), where they inform him of a debt amounting to 119.84 euros and include the warning of possible inclusion of the data in credit and solvency files if the debt is not addressed.

- Dated 10/12/21, delivery note no. 374 and delivery note at the office 2812096 of Correos with the acceptance of 469 shipments from the entity ESCO EXPANSION SL.

- Dated 26/04/24, copy of the certificate issued by the entity E Farré, S.L., certifying that the letter with ID ***ID.2, and reference ***REFERENCE.5 was sent to the claimant at the postal address appearing in the contract and that it is not recorded as having been returned.

c).- Second requirement and warning of inclusion in the credit file:

- Dated 14/01/22, copy of the communication sent by ISGF to the claimant, at the postal address appearing in the contract signed with

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ASF, ***REFERENCE.2; File: ***REFERENCE.5, where they inform you of a debt amounting to

117.29 euros and include the warning of the potential inclusion of the data in solvency and credit files if

the debt is not addressed.

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Dated 01/17/22, delivery note no. 53159 and delivery receipt at the office 2812096 of Correos of the entity EQUIFAX IBERICA SL.

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Dated 04/29/24, copy of the certificate issued by EQUIFAX IBERICA, S.L. ("Equifax"), stating that the letter with ref. ***REFERENCE.2, addressed to the claimant, was generated and processed on 01/14/22 by the service provider ARTEOS DIGITAL, S.L. and made available to the postal service, also certifying that there is no record of it being returned for any reason to the designated post office box for that purpose.

d).- Third request and warning of possible inclusion in the solvency file:

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Dated 04/08/22, copy of the communication sent by the entity ESCO EXPANSION SL to the claimant at the postal address appearing in the contract signed with the entity ASF, (ID ***ID.2 and reference number: ***REFERENCE.5 - delivery note no. 107), where they inform you of a debt amounting to 259.32 euros and include the warning of the possible inclusion of the data in solvency and credit files if the debt is not addressed.

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Dated 04/11/22, copy of delivery note 107 and delivery receipt at the office 2841594 of Correos, of 173 shipments, from the entity ESCO EXPANSION SL.

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Dated 04/26/24, copy of the certificate issued by the entity E Farré, S.L., certifying that the letter with ID ***ID.2 and reference number ***REFERENCE.5 was sent to the claimant certifying that there is no record of it being returned.

e).- Fourth request and warning of inclusion in the solvency file:

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Dated 05/04/22, copy of the communication sent by ISGF to the claimant, at the postal address appearing in the contract signed with ASF ***REFERENCE.3; File: ***REFERENCE.5 where they inform you of a debt of 129.89 euros and warn you of the possibility of inclusion of your data in solvency and credit files if the debt is not addressed.

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Dated 04/30/24, copy of the certificate issued by ISGF, stating that the letter with ref.

-***REFERENCE.3, addressed to the claimant, has not been recorded as having been returned for any reason.

f).- Burofax sent to the claimant by ASF

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Dated 01/11/24 Burofax sent by ASF to the claimant, at the postal address appearing in the contract signed between both parties, with reference number: ***REFERENCE.6 and where it is recorded as "Delivered to the recipient or authorized" on 01/12/24.

g).- Other documentation:

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Screenshot of the query made on 12/13/23 in the ASNEF-EQUIFAX system where it can be seen that, with the identifier ***NIF.1, the following information is returned: "No data to display."

SEVENTH: On 08/06/24, a resolution proposal was made in the sense that the Director of the AEPD proceed to ARCHIVE the present sanctioning procedure against the entity ASF, in accordance with the provisions of articles 63.3 of the LPACAP, for the alleged infringement of art 6.1 of the RGPD, classified in article 83.5.a).

The notification of the aforementioned resolution proposal was carried out in accordance with the rules established in the LPACAP, through electronic notification, with access to the content of the notification occurring on 08/06/24 as recorded in the file. No response has been received to this resolution proposal.

From the actions carried out in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

First: It is recorded that the claimant contracted with the entity ASF a line of credit by signing, on 11/03/21, the contract of "ABANCA-Credipago ***REFERENCE.1", where the claimant's postal address is listed as: ***ADDRESS.1. In this contract, it is stated in point vii) of section 5 of Clause 16 "Basic Information on Data Protection", the warning that personal data may be included in solvency files if the contract is breached.

Second: It is recorded that the entity ASF made a first request and warning of the possible inclusion in the solvency file to the claimant, through the company ESCO EXPANSION SL., dated 12/09/21, claiming a debt of 189.84 euros, presenting a copy of the communication sent to the claimant at the postal address appearing in the contract signed with the entity ASF, (ID ***ID.2 and reference number: ***REFERENCE.5, - delivery note no. 374); delivery note no. 374; - delivery receipt at the office 2812096 of Correos with the admission of 469 shipments from the entity ESCO EXPANSION SL. and - copy of the certificate issued by the company E Farré, S.L., certifying that the letter with ID ***ID.2, and reference ***REFERENCE.5 was sent to the claimant at the postal address appearing in the contract and that there is no record of it being returned.

Third: It is recorded that the entity ASF made a second request and warning of the possible inclusion in the solvency file to the claimant, through the company ISGF, dated 01/14/22, claiming a debt of 117.29 euros,

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presenting a copy of the communication sent by ISGF to the claimant, to the email address that appears in the contract signed with ASF, with reference number: ***REFERENCIA.2; File: ***REFERENCIA.5; - delivery note no. 53159 and delivery note at the office 2812096 of Correos by the entity EQUIFAX IBERICA SL. and - certificate issued by EQUIFAX IBERICA, S.L., stating that the letter with ref. ***REFERENCIA.2, addressed to the claimant was generated and processed on 14/01/22 by the service provider ARTEOS DIGITAL, S.L. and made available to the postal service, also certifying that it has not been returned for any reason to the designated post office box for that purpose.

Fourth: It is recorded that the entity ASF made a third request and warning of the possible inclusion of the claimant in the solvency file, through the company ESCO EXPANSION SL, dated 08/04/22, claiming a debt of 259.32 euros, presenting a copy of the communication sent by ESCO EXPANSION SL to the claimant at the email address that appears in the contract signed with the entity ASF, (ID ***ID.2 and reference number: ***REFERENCIA.5 - delivery note no. 107); - copy of delivery note 107 and delivery note at the office 2841594 of Correos, of 173 shipments, from the entity ESCO EXPANSION SL., and - copy of the certificate issued by the company E Farré, S.L., certifying that the letter with ID ***ID.2 and reference number ***REFERENCIA.5 was sent to the claimant certifying that it has not been returned.

Fifth: It is recorded that the entity ASF made a fourth request and warning of the possible inclusion of the claimant in the solvency file, through the company ISGF, dated 04/05/22, claiming a debt of 129.89 euros, presenting a copy of the communication sent by ISGF to the claimant, to the email address that appears in the contract signed with ASF: ***REFERENCIA.3; File: ***REFERENCIA.5 and - copy of the certificate issued by ISGF, stating that the letter with ref. -***REFERENCIA.3, addressed to the claimant has not been returned for any reason.

Sixth: It is recorded of a Burofax sent by the entity ASF to the claimant, to the email address that appears in the contract signed between both, with reference number: ***REFERENCIA.6 and where it is noted as "Delivered to the recipient or authorized" dated 12/01/24.

Seventh: It is recorded of the inclusion of the claimant's personal data in the ASNEF solvency file dated 05/09/22, by the reporting entity ASF.

Eighth: The responding entity provides a screenshot of the query made in the ASNEF-EQUIFAX system where it can be seen that, on 13/12/23, the identifier ***NIF.1 returns the following information "No data to display".

LEGAL GROUNDS

I.

Competence

In accordance with the provisions of Articles 58.2 and 60 of the GDPR and the provisions of Articles 47, 48.1, 64.2, and 68.1 and 68.2 of the LOPDGDD, it is competent to initiate and

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to resolve this procedure, the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.

Presumption of Lawfulness

Article 4 of the GDPR defines, in its paragraphs 1, 2, and 11, the terms "personal data"; "processing" and "consent" as follows:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes, by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her."

For its part, Article 6.1 of the GDPR establishes the "lawfulness of processing" in the following terms:

"1. Processing shall be lawful only if at least one of the following applies: a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes; b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract; c) processing is necessary for compliance with a legal obligation to which the controller is subject; d) processing is necessary to protect the vital interests of the data subject or of another natural person; e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that..."

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on such interests do not prevail over the interests or the fundamental rights and freedoms of the data subject that require the protection of personal data, particularly when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Therefore, data processing requires the existence of a legal basis that legitimizes it. Thus, Article 6.1 of the GDPR, in addition to consent, establishes other possible bases that legitimize data processing without the need for the authorization of its owner, in particular, when it is necessary for the execution of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the fundamental rights and freedoms of the data subject that require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this regard, the LOPDGDD, in its Article 20 establishes, regarding "Credit Information Systems," the following:

"1. Unless proven otherwise, the processing of personal data related to the non-compliance with monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate. The entity maintaining the credit information system with data related to the non-compliance with monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.
- d) That the data is only maintained in the system while the non-compliance persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.
- e) That the data related to a specific debtor can only be consulted when the person consulting...

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the system maintained a contractual relationship with the affected party that involves the payment of a monetary amount or the affected party had requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts. When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved. f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation carried out, the party that consulted the system shall inform the affected party of the result of that consultation.

2. The entities that maintain the system and the creditors, regarding the processing of data related to their debtors, will have the status of joint controllers of the data processing, being subject to the provisions of Article 26 of Regulation (EU) 2016/679. It will be the responsibility of the creditor to ensure that the requirements for the inclusion of the debt in the system are met, being liable for its

non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where the credit information was associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to carry out profiling of the debtor, particularly through the application of credit scoring techniques.”

III.

The responding entity states in its allegations dated 10/05/24, that in its letter sent to this Agency on 11/01/24, there was a communication defect and now argues that a formal request was indeed made to the interested party regarding the possibility of including their data in credit information systems and to justify the traceability of the notifications, it provides along with the letter, four notifications made on the dates 09/12/21, 14/01/23, 08/04/23, and 04/05/23, providing the following documentation to justify it:

- Letters referenced and individualized in the name of the claimant, detailing the debt and warning that non-payment may result in inclusion in credit information files.
- Certificate from a third independent entity that certifies the generation, printing, and mailing of the letters, certifying their non-return. It should be noted that this procedure is correct in the first three notifications, that of 09/12/21, that of 14/01/22, and that of 08/04/22, but not in the last notification dated 04/05/23 where the certifying entity, ISGF, is the same entity that performs the generation and printing of the letter.

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Document certifying the corresponding postal manager of such receipt for processing in the first three notifications, that of 09/12/21, that of 14/01/22, and that of 08/04/22. However, this document is not presented in the last notification.

In this regard, the LOPDGDD, in its article 20.1.c) establishes, regarding the requirement of prior payment demand and states about credit information systems, the following: “1. Unless proven otherwise, the processing of personal data related to the non-compliance of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met: (...) c) That the creditor has informed the affected party in the contract or at the time of demanding payment about the possibility of inclusion in such systems, indicating those in which it participates. The entity that maintains the credit information system with data related to the non-compliance of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in articles 15 to 22 of the Regulation within thirty days following the notification of the debt to the system, with the data remaining blocked during that period (...)”.

For its part, the STS of 20/12/22 (rec. 2737/22) analyzes the significance of art. 20.1 c) of the LOPDGDD, regarding the requirement of prior payment demand and states:

“12.- Therefore, the fact that the current art. 20.1.c) of Organic Law 3/2018 does not expressly establish the requirement of prior payment demand does not mean that the regulation of art. 38.1.c of the regulation approved by Royal Decree 1720/2007 opposes or is incompatible with the new legal norm and must therefore be considered repealed. Moreover, the new legal norm contains the mention of the existence of such prior requirement by providing that the warning of communication of the data to the file must be made either in that prior requirement or at the time of entering into the contract. This mention, which did not exist in the previous law, implies that the new legal provision presupposes the necessary existence of such prior requirement, which is one of the moments, along with the celebration of the contract, in which the creditor can warn the debtor about the communication of their data to the delinquent file in case of non-payment of the debt.

13.- The conclusion of the above is that the prior payment demand, provided for in art. 20.1.c of Organic Law 3/2018, remains exigible, whose function and justification have been expressed by this

chamber in numerous rulings (among the latest, ruling 604/2022, of September 14): it prevents the data of individuals who, due to a simple oversight, a banking error to which they are not privy, or any other circumstance of similar nature, have ceased to meet a matured and enforceable monetary obligation from being included in these records, which means that the data of non-payment is not pertinent for assessing their solvency. What is not essential with the new regulation is that in that payment demand it is warned of the possibility of including their data in a delinquent file in case of non-payment, as that warning may have been made at the time of contracting. (...)

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16.- In conclusion, we can affirm that under the new legal regime there are three distinguishable obligations: i) The creditor must inform the affected party, in the contract or at the time of requesting payment, about the possibility of inclusion in such systems, indicating those in which they participate (art. 20.1.c], first paragraph, of Organic Law 3/2018, which repeals art. 39 of the regulation approved by Royal Decree 1720/2007, as the latter required that the information be provided cumulatively at both moments). ii) The creditor, or anyone acting on their behalf or interest, must request payment from the debtor prior to communicating their data to the delinquent file (art. 38.1.c of the regulation approved by Royal Decree 1720/2007) and will be obliged to keep sufficient documentation available to the responsible party of the common file and the Spanish Agency for Data Protection that proves compliance with this requirement and the others required by the applicable regulations, in accordance with art. 38.3 of said regulation. iii) The entity that maintains the credit information system with data relating to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period (art. 20.1.c], second paragraph, of LO 3/2018). The notification must be made through a reliable, auditable, and independent means from the notifying entity, which allows it to prove the effective execution (art. 40.3).

It should be noted that what article 20.1.c) of the LOPDGDD requires from the creditor of the debt is the following: “c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.” However, the regulations do not specify the form and number of occasions on which they must inform about the possibility of inclusion in the file. It is also not expressly stated that in cases where multiple receipts corresponding to the same credit card contract are unpaid, it is mandatory for the creditor to send an independent payment request for each unpaid receipt. However, regarding this particular issue, it is pertinent to bring up the doctrine of the National Court as recorded in its ruling of 23/07/2010, Rec. 796/2009, concerning the payment request for the debt due to non-payment of credit installments, in which it is stated that “The Chamber considers that we are faced with a single debt, with payment in installments for the convenience of the complainant, a debt of which the complainant knows all the details, including the consequences of non-payment, and, in this sense, a new request is not necessary for the one already made due to the non-payment of subsequent installments,” a doctrine that applies to the present case as the debt arises from the purchase transactions carried out by the claiming party under a single credit contract.

Furthermore, considering the literal wording of the obligation, which determines that the debtor must be informed about the “possibility” of being included in the file; and the functional interpretation of the provision, whose clear purpose is for the debtor to know that by failing to pay any receipt of the contract they may be included in the solvency file, it is inferred that having already received several requests for inclusion in the same, the

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The claimant was correctly informed of this possibility, with the creditor entity complying with the provisions of Article 20.1.c) of the LOPDGDD.

It should also be noted that the respondent, on 12/01/24, sent a Burofax to the claimant at the same

email address that appears in the contract signed between both parties, and where it also indicates that it sent the four notifications of non-payment, being recorded in the traceability of the same as "Delivered to the recipient or authorized person," therefore the postal address where the notifications of non-payment were sent should be considered correct, with the warning of the possible inclusion of personal data in the solvency file if the debt was not addressed.

Therefore, in accordance with the evidence available, after analyzing the documents submitted in this process by the parties, it can be confirmed that the entity ASF has indeed fulfilled the requirement set out in Article 20.1.c) of the LOPDGDD, given that it has been proven that the claimant had been informed by the respondent that they would be included in the file, on four occasions, so there is not sufficient evidence of a violation of the GDPR by the respondent entity. Therefore, in light of the above, it is:

RESOLVED:

FIRST: TO ARCHIVE the present sanctioning procedure against the entity ABANCA SERVICIOS FINANCIEROS, E.F.C., S.A. (ASF), with CIF: A28197036, in accordance with the provisions of Article 63.3 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged violation of the provisions of Article 6.1 of the GDPR, classified under Article 83.5.a).

SECOND: NOTIFY: this resolution to the entity, ABANCA SERVICIOS FINANCIEROS, E.F.C., S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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